

ARTICLE XIV

THE NATIONAL ECONOMY AND THE PATRIMONY OF THE NATION

SECTION 1. The Batasang Pambansa shall establish a National economic and Development Authority, to be headed by the President, which shall recommend to the Batasang Pambansa, after consultation with the private sector, local government units, and other appropriate public agencies, continuing, coordinated, and fully integrated social and economic plans and programs.

SEC. 2. The State shall regulate or prohibit private monopolies when the public interest so requires. No combination in restraint of trade or unfair competition shall be allowed.

SEC. 3. The Batasang Pambansa shall, upon recommendation of the National Economic and Development Authority, reserve to citizens of the Philippines or to corporations or associations wholly owned, by such citizens, certain traditional areas of investments when the national interest so dictates.

SEC. 4. The Batasang Pambansa shall not, except by general law, provide for the formation; organization, or regulation of private corporations, unless such corporations are owned or controlled by the Government or any subdivision or instrumentality thereof.

SEC. 5. No franchise, certificate, or any other form of authorization for the operation of a public utility shall be granted except to citizens of the Philippines or to corporations or associations organized under the laws of the Philippines at least sixty per centum of the capital of which is owned by such citizens, nor shall such franchise, certificate, or authorization be exclusive in character or for a longer period than fifty years. Neither shall any such franchise or right be granted except under the condition that it shall be subject to amendment, alteration, or repeal in by the Batasang Pambansa when the public interest so requires. The State shall encourage equity participation in public utilities by the general public. The participation of foreign investors in the governing body of any public utility enterprise shall be limited to their proportionate share in the capital thereof.

SEC. 6. The State may, in the interest of national welfare or defense, establish and operate industries and means of transportation and communications, and, upon payment of just

410

compensation, transfer to public ownership utilities and other private enterprises to be operated by the Government.

SEC. 7. In times of national emergency when the public interest so requires, the State may temporarily take over or direct the operation of any privately owned public utility or business affected with public interest.

SEC. 8. All lands of the public domain, waters, minerals, coal, petroleum and other mineral oils,

all forces of potential energy, fisheries, wildlife, and other natural resources of the Philippines belong to the State. With the exception of agricultural, industrial or commercial, residential, and resettlement lands of the public domain, natural resources shall not be alienated, and no license, concession, or lease for the exploration, development, exploitation, or utilization of any of the natural resources shall be granted for a period exceeding twenty-five years, renewable for not more than twenty-five years, except as to water rights for irrigation, water supply, fisheries, or industrial uses other than the development of water power, in which cases, beneficial use may be the measure and the limit of the grant.

SEC. 9. The disposition, exploration, development, of exploitation, or utilization of any of the natural resources of the Philippines shall be limited to citizens of the Philippines, or to corporations or association at least sixty per centum of the capital of which is owned by such citizens. The Batasang Pambansa, in the national interest, may allow such citizens, corporations, or associations to enter into service contracts for financial, technical, management, or other forms of assistance with any foreign person or entity for the exploitation, development, exploitation, or utilization of any of the natural resources. Existing valid and binding service contracts for financial, the technical, management, or other forms of assistance are hereby recognized as such.

SEC. 10. Lands of the public domain are classified into agricultural, industrial or commercial, residential, resettlement, mineral, timber or forest, and grazing lands, and such other classes as may be provided by law.

SEC. 11. The Batasang Pambansa, taking into account conservation, ecological, and developmental requirements of the natural resources, shall determine by law the size of lands of the public domain which may be developed, held or acquired by, or leased to, any qualified individual, corporation, or association, and the conditions therefor. No private corporation or association may hold alienable lands of the public domain except by lease not to exceed one thousand hectares in area; nor may any citizen hold such lands by lease in excess of five hundred hectares or acquire by purchase or homestead in excess of twenty-four hectares. No private corporation or association may hold by lease, concession, license, or permit, timber or forest lands and other timber or forest resources in excess of one hundred thousand hectares; however, such area may be increased by the Batasang Pambansa upon recommendation of the National Economic and Development Authority.

411

SEC. 12. The State shall formulate and implement an agrarian reform program aimed at emancipating the tenant from the bondage of the soil and achieving the goals enunciated in this Constitution.

SEC. 13. The Batasang Pambansa may authorize, upon payment of just compensation, the expropriation of private land to be subdivided into small lots and conveyed at cost to deserving citizens.

SEC. 14. Save in cases of hereditary succession, no private lands shall be transferred or

conveyed except to individuals, corporations, or associations qualified to acquire or hold lands of the public domain.

SEC. 15. Notwithstanding the provisions of Section 14 of this Article, a natural-born citizen of the Philippines who has lost his Philippine citizenship may be a transferee of private land, for use by him as his residence, as the Batasang Pambansa shall provide.

SEC. 16. Any provision of paragraph one, Section fourteen, Article Eight and of this Article notwithstanding, the President may enter into international treaties or agreements as the national welfare and interest may require.

ARTICLE XV

GENERAL PROVISIONS

SECTION 1. The flag of the Philippines shall be red, white, and blue, with a sun and three stars, as consecrated and honored by the people and recognized by law.

SEC. 2. The interim Batasang Pambansa may by law adopt a new name for the country, a national anthem, and a national seal, which shall all be truly reflective and symbolic of the ideals, history, and traditions of the people. Thereafter, the national name, anthem, and seal so adopted shall not be subject to change except by constitutional amendment.

SEC. 3. (1) This Constitution shall be officially promulgated in English and in Pilipino, and translated into each dialect spoken by over fifty thousand people, and into Spanish and Arabic. In case of conflict, the English text shall prevail.

(2) The Batasang Pambansa shall take steps towards the development and formal adoption of a common national language to be known as Filipino.

(3) Until otherwise provided by law, English and Pilipino shall be the official languages.

SEC. 4. All public officers and employees and members of the armed forces shall take an oath to support and defend the Constitution.

412

SEC. 5. No elective or appointive public officer or employee shall receive additional or double compensation unless specifically authorized by law, nor accept, without the consent of the Batasang Pambansa, any present, emolument, office, or title of any kind from any foreign state.

SEC. 6. No salary or any form of emolument of any public officer or employee, including constitutional officers, shall be exempt from payment of income tax.

SEC. 7. (1) The ownership and management of mass media shall be limited to citizens of the Philippines or to corporations or associations wholly owned and managed by such citizens.

(2) The governing body of every entity engaged in commercial telecommunications shall in all cases be controlled by the citizens of the Philippines.

SEC. 8. (1) All educational institutions shall be under the supervision of, and subject to regulation by, the State. The State shall establish and maintain a complete, adequate, and integrated system of education relevant to the goals of national development.

(2) All institutions of higher learning shall enjoy academic freedom.

(3) The study of the Constitution shall be part of the curricula in all schools.

(4) All educational institutions shall aim to inculcate love of country, teach the duties of citizenship, and develop moral character, personal discipline, and scientific, technological, and vocational efficiency.

(5) The State shall maintain a system of free public, elementary education and, in areas where finances permit, establish and maintain a system of free public education at least up to the secondary level.

(6) The State shall provide citizenship and vocational training to adult citizens and out-of-school youth, and create and maintain scholarships for poor and deserving students.

(7) Educational institutions, other than those established by religious orders, mission boards, and charitable organizations, shall be owned solely by citizens of the Philippines, or corporations or association sixty per centum of the capital of which is owned by such citizens. The control and administration of educational institutions shall be vested in citizens of the Philippines. No educational institution shall be established exclusively for aliens, and no group of aliens shall comprise more than one-third of the enrolment in any school. The provisions of this sub-section shall not apply to schools established for foreign diplomatic personnel and their dependents and, unless otherwise provided by law, for other foreign temporary residents.

(8) At the option expressed in writing by the parents or guardians, and without cost to them and the Government, religion shall be taught to their children or wards in public elementary and high schools as may be provided by law.

413

SEC. 9. (1) The State shall promote scientific research and invention. The advancement of science and technology shall have priority in the national development.

(2) Filipino culture shall be preserved and developed for national identity. Arts and letters shall be under the patronage of the State.

(3) The exclusive right to inventions, writings and artistic creations shall be secured to inventors authors, and artists for a limited period. Scholarships, grants-in-aid, or other forms of incentives shall be provided for specially gifted citizens.

SEC. 10. It shall be the responsibility of the State to achieve and maintain population levels most conducive to the national welfare.

SEC. 11. The State shall consider the customs traditions, beliefs, and interests of national cultural communities in the formulation and implementation of state policies.

SEC. 12. The State shall establish and maintain an integrated national police force whose organization, administration, and operation shall be provided by law.

SEC. 13. (1) The armed forces of the Philippines shall include a citizen army composed of all able-bodied citizens of the Philippines who shall undergo military training as may be provided by law. It shall keep a regular force necessary for the security of the State.

(2) The citizen army shall have a corps of trained officers and men in active duty status as may be necessary to train, service, and keep it in reasonable preparedness at all times.

SEC. 14. The Batasang Pambansa shall establish a central monetary authority which shall provide policy direction in the areas of money, banking, and credit. It shall have supervisory authority over the operations of banks and exercise such regulatory authority as may be provided by law over the operations of finance companies and other institutions performing similar functions. Until the Batasang Pambansa shall otherwise provide, the Central Bank of the Philippines, operating under existing laws, shall function as the central monetary authority.

SEC. 15. The separation of church and state shall be inviolable.

SEC. 16. The State may not be sued without its consent.

ARTICLE XVI

AMENDMENTS

414

SECTION 1. (1) Any amendment to, or revision of, this Constitution may be proposed by the Batasang Pambansa upon a vote of three-fourths of all its Members, or by a constitutional convention.

(2) The Batasang Pambansa may, by a vote of two-thirds of all its Members, call a constitutional convention or, by a majority vote of all its Members, submit the question of calling such a convention to the electorate in an election.

SEC. 2. Any amendment to, or revision of, this Constitution shall be valid when ratified by a

majority of the votes cast in a plebiscite which shall be held not later than three months after the approval of such amendment or revision.

ARTICLE XVII

TRANSITORY PROVISIONS

SECTION 1. There shall be an interim National Assembly which shall exist immediately upon the ratification of this Constitution and shall continue until the Members of the regular National Assembly shall have been elected and shall have assumed office following an election called for the purpose by the interim National Assembly. Except as otherwise provided in this Constitution, the interim National Assembly shall have the same powers and its Members shall have the same functions, responsibilities, rights and privileges, and disqualifications as the regular National Assembly and the Members thereof.

SEC. 2. The Members of the interim National Assembly shall be the incumbent President and Vice-President of the Philippines, those who served as President of the nineteen hundred and seventy-one Constitutional Convention, those Members of the Senate and the House of Representatives who shall express in writing to the Commission on Elections within thirty days after the ratification of this Constitution their option to serve therein, and those Delegates to the nineteen hundred and seventy-one Constitutional Convention who have opted to serve therein by voting affirmatively for this Article. They may take their oath of office before any officer authorized to administer oath and qualify thereto, after the ratification of this Constitution.

SEC. 3. (1) The incumbent President of the Philippines shall initially convene the interim National Assembly and shall preside over its sessions until the interim Speaker shall have been elected. He shall continue to exercise his powers and prerogatives under the nineteen hundred and thirty-five Constitution and the powers vested in the President and the Prime Minister under this Constitution until he calls upon the interim National Assembly to elect the interim President and the interim Prime Minister, who shall then exercise their respective powers vested by this Constitution.

(2) All proclamations, orders, decrees, instructions, and acts promulgated, issued, or done by the incumbent President shall be part of the law of the land, and shall remain valid, legal,

415

binding, and effective even after lifting of martial law or the ratification of this Constitution, unless modified, revoked, or superseded by subsequent proclamations, orders, decrees, instructions, or other acts of the incumbent President, or unless expressly and explicitly modified or repealed by the regular National Assembly.

SEC. 4. The interim Prime Minister and his Cabinet shall exercise all the powers and functions, and discharge the responsibilities of the regular Prime Minister and his Cabinet, and shall be subject to the same disqualifications provided in this Constitution.

SEC. 5. The interim National Assembly shall give priority to measures for the orderly transition from the presidential to the parliamentary system, the reorganization of the Government, the eradication of graft and corruption, the effective maintenance of peace and order, the implementation of declared agrarian reforms, the standardization of compensation of government employees, and such other measures as shall bridge the gap between the rich and the poor.

SEC. 6. The interim National Assembly shall reapportion the Assembly seats in accordance with Section two, Article Eight, of this Constitution.

SEC. 7. All existing laws not inconsistent with this Constitution shall remain operative until amended, modified, or repealed by the National Assembly.

SEC. 8. All courts existing at the time of the ratification of this Constitution shall continue and exercise their jurisdiction, until otherwise provided by law in accordance with this Constitution, and all cases pending in said courts shall be heard, tried, and determined under the laws then in force. The provisions of the existing Rules of Court not inconsistent with this Constitution shall remain operative unless amended, modified, or repealed by the Supreme Court or the National Assembly.

SEC. 9. All officials and employees in the existing Government of the Republic of the Philippines shall continue in office until otherwise provided by law or decreed by the incumbent President of the Philippines, but all officials whose appointments are by this Constitution vested in the Prime Minister shall vacate their respective offices upon the appointment and qualification of their successors.

SEC. 10. The incumbent members of the Judiciary may continue in office until they reach the age of seventy years, unless sooner replaced in accordance with the preceding section hereof.

SEC. 11. The rights and privileges granted to citizens of the United States or to corporations or associations owned or controlled by such citizens under the Ordinance appended to the nineteen hundred and thirty-five Constitution shall automatically terminate on the third day of July, nineteen hundred and seventy-four. Titles to private lands acquired by such persons before such date shall be valid as against other private persons only.

SEC. 12. All treaties, executive agreements, and contracts entered into by the Government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled

416

corporations, are hereby recognized as legal, valid, and binding. When the national interest so requires, the incumbent President of the Philippines or the interim Prime Minister may review all contracts, concessions, permits, or other forms of privileges for the exploration, development, exploitation, or utilization of natural resources entered into, granted, issued, or acquired before the ratification of this Constitution.

SEC. 13. Any public officer or employee separated from the service as a result of the

reorganization effected under this Constitution shall, if entitled under the laws then in force, receive the retirement and other benefits accruing thereunder.

SEC. 14. All records, equipment, buildings, facilities, and other properties of any office or body abolished or reorganized under this Constitution shall be transferred to the office or body to which its powers, functions, and responsibilities substantially pertain.

SEC. 15. The interim National Assembly, upon special call by the interim Prime Minister, may, by a majority vote of all its Members, propose amendments to this Constitution. Such amendments shall take effect when ratified in accordance with Article Sixteen hereof.

SEC. 16. This Constitution shall take effect immediately upon its ratification by a majority of the votes cast in a plebiscite called for the purpose and, except as herein provided, shall supersede the Constitution of nineteen hundred and thirty-five and all amendments thereto.

The foregoing Constitution was approved by the Filipino people in a referendum held between January 10, 1973 and January 15, 1973, the result of which was announced under Proclamation Numbered One Thousand One Hundred Two, dated January 17, 1973, by His Excellency, President Ferdinand E. Marcos. By virtue whereof, the Constitution came into full force and effect as of noon of January 17, 1973. In addition to the 1976 amendments reproduced in the following pages, the Filipino people in two plebiscites respectively held on January 30, 1980 and April 7, 1981 approved the amendments herein incorporated, the results being announced in Proclamation No. 1959 and Proclamation No. 2077.

[Appendix]

1976 AMENDMENTS

1. There shall be, in lieu of the interim National Assembly, an interim Batasang Pambansa. Members of the interim Batasang Pambansa which shall not be more than 120, unless otherwise provided by law, shall include the incumbent President of the Philippines, representatives elected from the different regions of the nation, those who shall not be less than eighteen years of age

417

elected by their respective sectors, and those chosen by the incumbent President from the Members of the Cabinet. Regional representatives shall be apportioned among the regions in accordance with the number of their respective inhabitants and on the basis of a uniform and progressive ratio, while the sector shall be determined by law. The number of representatives from each region or sector and the manner of their election shall be prescribed and regulated by law.

2. The interim Batasang Pambansa shall have the same powers and its Members shall have the same functions, responsibilities, rights, privileges, and disqualifications as the interim National Assembly and the regular National Assembly and the Members thereof.

3. The incumbent President of the Philippines shall, within 30 days from the election and selection of the Members, convene the interim Batasang Pambansa and preside over its sessions until the Speaker shall have been elected. The incumbent President of the Philippines shall be the Prime Minister and he shall continue to exercise all his powers even after the interim Batasang Pambansa is organized and ready to discharge its functions, and likewise he shall continue to exercise his powers and prerogatives under the 1935 Constitution and the powers vested in the President and the Prime Minister under this Constitutions.

4. The President (Prime Minister) and his Cabinet shall exercise all the powers and functions, and discharge the responsibilities of the regular President (Prime Minister) and his Cabinet, and shall be subject only to such disqualifications as the President (Prime Minister) may prescribe. The President (Prime Minister), if he so desires, may appoint a Deputy Prime Minister or as many Deputy Prime Ministers as he may deem necessary.

5. The incumbent President shall continue to exercise legislative powers until martial law shall have been lifted.

6. Whenever in the judgment of the President (Prime Minister), there exists a grave emergency or a threat or imminence thereof, or whenever the interim Batasang Pambansa or the regular National Assembly fails or is unable to act adequately on any matter for any reason that in his judgment requires immediate action, he may, in order to meet the exigency, issue the necessary decrees, orders, or letters of instructions, which shall form part of the law of the land.

7. The Barangays and sanggunians shall continue as presently constituted but their functions, powers and composition may be altered by law.

Referenda conducted through the barangays and under the supervision of the Commission on Elections may be called at any time the Government deems it necessary to ascertain the will of the people regarding any important matter, whether of national or local interest.

8. All provisions of this Constitution not inconsistent with any of these amendments shall continue in full force and effect.

418

9. These amendments shall take effect after the incumbent President shall have proclaimed that they have been ratified by a majority of the votes cast in the referendum-plebiscite.

Speech of President Marcos on the Philippines' program for economic recovery and growth July 25, 1984

**Speech
of
His Excellency Ferdinand E. Marcos
President of the Philippines
On the Philippines' program for economic recovery and growth**

[Released on July 25, 1984]

The document is accessible at <https://www.officialgazette.gov.ph/1984/07/25/speech-of-president-marcos-on-the-philippines-program-for-economic-recovery-and-growth/>

Catapulted to the presidency in 1965, President Ferdinand Marcos secured a second term in 1969. By virtue of Proclamation No. 1081, President Marcos placed the country under martial law on September 21, 1972, following a spate of bombings in Metro Manila. Constitutional authoritarianism supplanted the democratic institutions. On February 25, 1986, after four days of bloodless EDSA People Power Revolution, Marcos was compelled to step down and flee with his family to Hawaii.

In his speech delivered before the delegates to the local aid review conferences on July 25, 1984, President Marcos noted that the conference took place at a time when the country was “in the midst of grappling with a financial crisis” that imposed an onerous burden on the “development efforts” of the government. He spoke of the development strategies that his government had embraced to propel the domestic economy in the 1970s and 1980s. Marcos attributed the “economic performance” of the country to a “development strategy” which called for large public investment, “supportive fiscal and monetary policy,” and increased foreign investments, which were instituted to cushion the impact of the major oil crises 1973-74 and 1979-80. Marcos went on to say that in the 1980s, the government, in the face of the stark international economic developments and dismal economic performance of the country at the end of the 1970s, the government carried out a

four-year “medium-term plan” that was anchored on a “five-point recovery program.” The president pointed out that the government had shifted to “small scale, labor-intensive, and foreign-exchange-saving or earning projects.” He made

420

it clear that as the government continued to foster “international cooperation,” it would still gave importance to “national interest.”

I would like to express the Philippine government’s deep appreciation to the delegates on this second and last day of the local aid review conference, especially our good friends from our donor countries and international institutions. Our thanks also to the Asian Development Bank for the valuable assistance it extended to the national economic and development authority in the organization of this meeting.

Your meeting indeed comes at a crucial time in our nation’s history when we are in the midst of grappling with a financial crisis that continues to put a heavy strain on our development efforts. As we look back to the past, we note that the last decade (1972-82) was a period of significant changes in the Philippines, a middle-income oil-importing country with a present population of 53.4 million. Growing at the rate of 5.5 percent in real terms over the past 11 years, the Philippines has a per capita GNP of \$650 in current terms as of end-1983. Agriculture accounted for roughly 25 percent and industry about 36 percent of the gross national product that year as against 29 percent and 31 percent respectively, in 1972.

The Philippines’ economic performance during the past decade is the result of a development strategy that was characterized by continued high rate of public investment; supportive fiscal and monetary policy; and substantial capital inflows to fund development requirements. These policies were pursued to partly overcome the two major oil shocks in 1973-74 and 1979-80.

Consistent with the long-term growth strategy and in response to several debilitating effects of the first oil crisis, we embarked on a number of important measures. An aggressive energy development program was launched in 1973, which reduced oil import dependence from 95 percent in 1972 to 65 percent in 1983. Export development was strengthened and collection of domestic revenues and exports provided the leverage to gain access to foreign borrowings, particularly during the mid-1970s. During the period 1973-82, the country was granted medium and long term loans averaging to some \$1.5 billion per year.

At the same time, Philippine availment of official development assistance also grew substantially amounting to a total of US\$6 billion ODA loans outstanding as of end-December 1983. The proportion of ODA loans to total non-monetary external debts increased from 19.6 percent in 1973 to 30 percent in 1983, reflecting the growing contribution of ODA to the overall development program of the country.

These foreign borrowings substantially augmented our domestic resources, and these were utilized to finance major development programs in an effort to meet the increasing demand of the population for basic services and livelihood opportunities.

During the decade 1972-1982, the government spent some P62 billion in such people-oriented

development programs as: (1) energy self-reliance (23.5%); (2) education (21.5%); (3) water resources (11.3%) food self-sufficiency (14.4%); (5) transport and communications (15.8%); (6) health (6.2%); (7) livelihood and housing (5%); and (8) agrarian reform (2.3%). These expenditures, designed for the economic and social uplift of the poorest among our people, were

421

more than 10 times the development expenditures for 1962-71. While government spending was clearly expansionary, the budgetary deficit to GNP ratio was carefully controlled at less than 2 percent until 1980, increasing only to 4.3 percent by 1982.

This development strategy was successful until the late 1970s, by which time the economy had been growing by about six and a half percent, much faster than in the late 1960s. After 1979, however, real GNP declined progressively from 4.4 percent in 1980 to 1.4 percent in 1983, the lowest growth since the country's independence in 1946. The decline can be attributed to two factors: the second oil shock in 1979 and the consequent prolonged recession and the failure of some past investments to yield expected targets.

After the second oil shock and the onset of a world recession, major debtor developing countries like the Philippines found it more difficult to earn foreign exchange from exports because of the international recession. At the same time, restrictive monetary policies abroad to contain inflation caused a steep rise in international interest rates and heavier debt service burdens for borrowing countries. The Philippines' already sizable level of external debt and the decline in export receipt precluded the sustenance in growth targets in the 1980s.

To redress our present economic difficulties we are now pursuing a medium-term plan that is built around a five-point recovery program. This four-year plan is basically designed to stem the balance of payment crisis, increase self-reliance and national productivity and bring about meaningful structural changes in the Philippine economy.

We are now negotiating a financial package with the International Monetary Fund, a consortium of about 500 creditor banks and official sources of capital, most of whom, I understand are represented here today. This financial package will consist of an IMF standby credit, rescheduling of part of the country's foreign debt, maintenance of trade-related credit facilities at least at the level of October 1983, and particularly with your generous support on new official development assistance loans. This is expected to improve our BOP position and to maintain the inflow of essential imports.

We are also taking measures to stimulate domestic resource generation through a combination of demand management policies designed to restrain imports, strengthen export incentives, and minimize inflation. A floating exchange rate was adopted as of 6 June 1984 to control the current account deficit. At the same time, the national government has adopted a revenue and expenditure program to keep the fiscal deficit to not more than 1.2 percent of GNP up to 1987. In keeping with the stabilization program, credit expansion will be stringently controlled to minimize inflationary pressures.

In tandem with shorter-term stabilization measures, development activities have been reoriented in favor of on-going, small-scale, labor-intensive, and foreign-exchange-saving or earning projects. A larger share of investments will be allocated to productivity programs for livelihood

provision and self-employment. Natural resources will be developed to complement priority programs in food production, energy, exports, and social services. In contrast to the large-scale capital intensive programs of the late 1970s, these small-scale investments are addressed

422

specifically to problems of resource scarcity and possible worker displacement, particularly during the period of adjustment.

We have, moreover, adopted a development strategy that emphasizes the modernization of agriculture. Through agricultural productivity programs, it is envisioned that the country's current dependence on foreign borrowings will be reduced by increased export earnings from agro-based activities and the boost to domestic savings generated by higher rural incomes. The development of forests, aquatic resources, and mineral-based activities, on the one hand, will be complemented by cottage, small and medium scale, labor-intensive industries, on the other. As an immediate step to generate more livelihood activities, jobs, food supply, foreign exchange receipts and to meet the other needs of our people and industries, productivity and rehabilitation programs will be implemented.

These programs include the massive planting of hybrid corn, intensified rice production, aquaculture development assistance to the copper industry and other mineral sectors, expanded production of non-traditional exports such as electronic products and garments, and commercialization of technological breakthroughs for producing food and raw materials on a commercial scale such as rattan, root crops, and other products.

To make the productive system more efficient, internationally competitive, and able to generate more productive employment, phased trade liberalization and tariff reforms began in 1980 will continue to be implemented. In line with the new priorities, structural adjustment will be expanded to include the agriculture sector. The program will cover more efficient pricing and marketing, institutional and other incentives. These are expected to increase the labor absorptive capacity, foreign exchange generation, and relative profitability of agro-based industries.

To support the structural adjustment program, key industries will be revitalized. Nonconventional and rural-based sources of energy will be developed, and exportation of goods and services will be encouraged according to the country's comparative advantage. These will be complemented by tourism promotion and increased collaboration with other countries on mutually profitable ventures, to maximize foreign exchange earnings.

We recognize that over the short-term, economic stabilization measures are expected to put pressure on the unemployment situation. This will be addressed through a package of adjustment assistance for workers and their families suffering from economic stress, such as prudent wage adjustments, staggered working hours to prevent mass layoffs, separation pay for laid-off workers, advance payment of vacation and sick leave benefits, and unemployment assistance loans. Short-term skills training tailored to the needs of potential growth industries shall also be given to facilitate re-entry of laid-off workers into the labor market.

The Philippine government adheres to a policy of helping to advance international cooperation while at the same time pursuing the national interest. It is in this light that we have embarked on a financial and economic program to make our domestic economy more self-reliant, able to

respond better to external shocks, and able to fulfill its economic obligations to the rest of the world.

423

Beyond national initiatives, however, a broadly based world economic recovery is contingent on actions taken by the developed countries. Firstly, we welcome policies conducive to lower international interest rates, in order to sustain investments and reduce debt servicing cost. Secondly, we encourage the continuation of capital inflows from both commercial and official development sources, including initiatives to extend multi-year rescheduling of external debts where debtor countries show serious adjustment efforts. We are also pledged to supporting flows of direct private investment. And thirdly, we encourage more openness to developing country exports and a generally more liberal approach to trade.

As I mentioned earlier, the Philippines has increasingly availed itself of ODA to supplement domestic resources. In the face of the rising interest on commercial loans, the tight credit situation, and the general instability of the financial markets, official development assistance will continue to play a major role in our national development programs.

We are indeed very grateful to both bilateral and multilateral lending institutions for their continued assistance during these difficult times in our national life even as we vigorously pursue our economic stabilization program, not only to achieve a healthy national economy, but also to fulfill our commitments to the institutions who have generously assisted the country in the past, we look forward to the continuing support and cooperation of both bilateral and international development institutions. In particular, we hope these agencies will look favorably at programs and projects directly supportive of agricultural and rural development and other support services aimed at raising agricultural productivity and benefiting the majority of the Filipinos who continued to rely on agriculture for their livelihood.

Again, on behalf of the Filipino people, I thank you for your support in our national development efforts.

Thank you and good day.

Source: Presidential Museum and Library

Marcos, F. E. (1984). Speeches by President Ferdinand E. Marcos. [Manila]: Presidential Library.

Managed by EDP/IT Division of the Presidential Communications Operations Office (PCOO)

424

Presidential Decree No. 2, s. 1972

Proclaiming the Entire Country as a Land Reform Area

Ferdinand Marcos

This document is downloaded from Presidential Management Staff. *Presidential Decree No. 2, s. 1972: Proclaiming the Entire Country as a Land Reform Area* by Ferdinand Marcos. Manila: Official Gazette of the Philippines, 1972. <https://tinyurl.com/yyhfr36b>.

Catapulted to the presidency in 1965, President Ferdinand Marcos secured a second term in 1969. By virtue of Proclamation No. 1081, President Marcos placed the country under martial law on September 21, 1972, following a spate of bombings in Metro Manila. Constitutional authoritarianism supplanted the democratic institutions. On February 25, 1986, after four days of bloodless EDSA People Power Revolution, Marcos was compelled to step down and flee with his family to Hawaii.

On September 26, 1972, five days after the declaration of martial law, President Marcos, cognizant of the imperative to speed up the government's Agrarian Reform Program with a view to ensure the farmers lead a life with dignity, among other avowed objectives, issued Presidential Decree No. 2, s. 1972, proclaiming the entire country "a land reform area" and directing all government agencies and offices to fully support the Department of Agrarian Reform to guarantee the successful implementation of the program.

WHEREAS, there is pressing need to accelerate the Agrarian Reform Program of the Government for the early attainment of the objectives set forth in Republic Act No. 3844, as amended;

WHEREAS, among such objectives is to achieve dignified existence for the small farmers free from the pernicious institutional restraints and practices which have not only retarded the agricultural development of the country but have also produced widespread discontent and unrest among our farmers, one of the causes of the existing national emergency; and

WHEREAS, it is believed that the lasting objectives of land reform may be sooner realized if the whole country is declared a land reform area;

NOW, THEREFORE, I, FERDINAND E. MARCOS, President of the Philippines, by virtue of the powers vested in me by the constitution as Commander-in-Chief of all the Armed Forces of the Philippines, and pursuant to Proclamation No. 1081 dated September 21, 1972, and General

425

Order No. 1, dated September 22, 1972, as amended, whereby I have assumed direction of the operation of the entire Government, do hereby proclaim the whole country, as land reform area.

All agencies and offices of the Government are enjoined to extend full cooperation and assistance to the Department of Agrarian Reform to insure the successful prosecution of the

Agrarian Reform Program.

The Agrarian Reform Coordinating Council created under Executive Order No. 347, series of 1971, is hereby directed to convene immediately to exercise its functions.

The Secretary of Agrarian Reform shall take the necessary steps for the prompt and effective implementation of this decree.

Done in the City of Manila, this 26th day of September, in the year of Our Lord, nineteen hundred and seventy-two.

(SGD.) FERDINAND E. MARCOS

President

Republic of the Philippines

Presidential Management Staff. *Presidential Decree No. 2, s. 1972: Proclaiming the Entire Country as a*

Land Reform Area by Ferdinand Marcos. Manila: Official Gazette of the Philippines, 1972. <https://tinyurl.com/yvhfr36b>.

426

Presidential Decree No. 27, s. 1972

**Decreeing the Emancipation of Tenant from the Bondage of Soil,
Transferring to them the Ownership of the Land they Till and Providing the
Instruments and Mechanism therefore.**

Ferdinand Marcos

This document is culled from Malacanang Palace. *Presidential Decree No. 27, s. 1972: Decreeing the Emancipation of Tenant from the Bondage of Soil, Transferring to them the Ownership of the Land they Till and Providing the Instruments and Mechanism therefore* by Ferdinand Marcos and Alejandro Melchor. Manila: Official Gazette of the Philippines, 1972. <https://tinyurl.com/y32creqs>.

Catapulted to the presidency in 1965, President Ferdinand Marcos secured a second term in 1969. By virtue of Proclamation No. 1081, President Marcos placed the country under martial law on September 21, 1972, following a spate of

bombings in Metro Manila. Constitutional authoritarianism supplanted the democratic institutions. On February 25, 1986, after four days of bloodless EDSA People Power Revolution, Marcos was compelled to step down and flee with his family to Hawaii.

On October 21, 1972, President Marcos promulgated the second presidential decree that dealt with the question of land reform. Stipulating the “emancipation of all tenant farmers and transfer of the land they till,” this decree spelled out the fine points of the administration’s land reform program. President Marcos prefaced the decree by recognizing the compelling necessity to address the injustices arising from land ownership, which was a bedrock of the New Society. In terms of scope, the decree limited the coverage of the program to “tenanted” rice and corn land and pegged the retention limit at a maximum of seven hectares. The decree further mandated the purchase of the landholdings that exceeded seven hectares by the government for distribution and sale to the tenants who were to pay the total cost of the land over a period of 15 years.

Inasmuch as the old concept of the land ownership by a few has spawned valid and legitimate grievances that gave rise to violent conflict and social tension,

427

The redness of such legitimate grievances being one of the fundamental objectives of the New Society,

Since Reformation must start with emancipation of the tiller bondage,

NOW, THEREFORE, I FERDINAND E. MARCOS, President of the Philippines, by virtue of the powers vested in me by the Constitution as Commander-in-Chief of all the Armed Forces of the Philippines, and pursuant to Proclamation No. 1081, dated September 21, 1972 and General Order No. 1 dated September 22, 1972 as amended do hereby decree and order the emancipation of all tenant farmers as of this day, October 21, 1972;

This shall apply to all tenant farmers of private agricultural lands primarily devoted to rice and corn under a system of sharecrop or lease-tenancy, whether classified as landed estate or not;

The tenant farmer, whether in land classified as landed estate or not, shall be deemed owner of a portion constituting a family-size farm of five (5) hectares if not irrigated and three (3) hectares if irrigated;

In all cases, the landowner may retain an area of not more than seven (7) hectares if such landowner is cultivating such area or will now cultivate it;

For the purpose of determining the cost of the land to be transferred to the tenant-farmer pursuant to this Decree, the value of the land shall be equivalent to two and one-half (2½) times the

average harvest of the three normal crop years immediately preceding the promulgation of this Decree;

The total cost of the land, including the interest at the rate of six (6) percentum per annum, shall be paid by the tenant in fifteen (15) years of fifteen (15) equal annual amortizations;

In case of default, the amortizations due shall be paid by the farmers cooperative in which the defaulting tenant-farmer is a member, with the cooperative having a right of recourse against him;

The government shall guaranty such amortizations with shares of stock in government-owned and government-controlled corporations;

No title to the land owned by the tenant-farmers under this Decree shall be actually issued to a tenant-farmer unless and until the tenant-farmer has become a full-pledge member of a duly recognized farmer's cooperative;

Title to land acquired pursuant to this Decree or the Land Reform Program of the Government shall not be transferable except by hereditary succession or to the Government in accordance with the provisions of this Decree, the Code of Agrarian Reforms and other existing laws and regulations;

428

The Department of Agrarian Reform through its Secretary is hereby empowered to promulgate rules and regulations for the implementation of this Decree.

All laws, executive orders, decrees and rules and regulations, or parts thereof, inconsistent with this Decree are hereby repealed and or modified accordingly.

Done in the City of Manila, this 21st day of October, in the year of Our Lord, nineteen hundred and seventy-two.

(Sgd.) FERDINAND E. MARCOS

President of the Philippines

By the President:

(Sgd.) ALEJANDRO MELCHOR

Executive Secretary

Malacanang Palace. *Presidential Decree No. 27, s. 1972: Decreeing the Emancipation of Tenant from the*

Bondage of Soil, Transferring to them the Ownership of the Land they Till and Providing the Instruments and Mechanism therefore by Ferdinand Marcos and Alejandro Melchor. Manila: Official Gazette of the Philippines, 1972. <https://tinyurl.com/y32creqs>.

429

Proclamation No. 1081, s. 1972

Signed on September 21, 1972

MALACAÑANG

MANILA

PROCLAMATION No. 1081

PROCLAIMING A STATE OF MARTIAL LAW IN THE PHILIPPINES

This document is downloaded from <https://www.officialgazette.gov.ph/1972/09/21/proclamation-no-1081/>

Catapulted to the presidency in 1965, President Ferdinand Marcos secured a second term in 1969. By virtue of Proclamation No. 1081, President Marcos placed the country under martial law on September 21, 1972, following a spate of bombings in Metro Manila. Constitutional authoritarianism supplanted the democratic institutions. On February 25, 1986, after four days of bloodless EDSA People Power Revolution, Marcos was compelled to step down and flee with his family to Hawaii.

By virtue of Proclamation No. 1081, President Marcos, invoking the powers vested upon him by Article VII, Section 10, Paragraph (2) of the 1935 Constitution, placed the entire country in a state of martial law on September 21, 1972, which lasted under January 17, 1981. As commander-in-chief, Marcos, he directed the Armed Forces of the Philippines to preserve public order in the country, “prevent or suppress all forms of lawless violence as well any act of insurrection or rebellion and ensure compliance with “all the laws and decrees, orders and regulations” issued by the president. In justifying the proclamation of martial law, Marcos described in graphic terms the state of anarchy that undermined the national security and stability of the country. Specifically, he referred to the “communist threat” posed by the Communist Party of the Philippines and its “front organizations, the rebellion of the Mindanao Independence Movement, and “other armed aggruppations” whose objective was to “overthrow the Republic of the Philippines.”

WHEREAS, on the basis of carefully evaluated and verified information, it is definitely established that lawless elements who are moved by a common or similar ideological conviction, design, strategy and goal and enjoying the active moral and material support of a foreign power

430

and being guided and directed by intensely devoted, well trained, determined and ruthless groups of men and seeking refuge under the protection of our constitutional liberties to promote and attain their ends, have entered into a conspiracy and have in fact joined and banded their resources and forces together for the prime purpose of, and in fact they have been and are actually staging, undertaking and waging an armed insurrection and rebellion against the Government of the Republic of the Philippines in order to forcibly seize political and state power in this country, overthrow the duly constituted government, and supplant our existing political, social, economic and legal order with an entirely new one whose form of government, whose system of laws, whose conception of God and religion, whose notion of individual rights and family relations, and whose political, social, economic, legal and moral precepts are based on the Marxist-Leninist-Maoist teachings and beliefs ;

WHEREAS, these lawless elements, acting in concert through seemingly innocent and harmless, although actually destructive, front organizations which have been infiltrated or deliberately formed by them, have continuously and systematically strengthened and broadened their memberships through sustained and careful recruiting and enlistment of new adherents from among our peasantry, laborers, professionals, intellectuals, students, and mass media personnel, and through such sustained and careful recruitment and enlistment have succeeded in spreading and expanding, their control and influence over almost every segment and level of our society throughout the land in their ceaseless effort to erode and weaken the political, social, economic, legal and moral foundations of our existing government, and to influence, manipulate and move peasant, labor, student and terroristic organizations under their influence or control to commit, as in fact they have committed and still are committing, acts of violence, depredations, sabotage and injuries against our duly constituted authorities, against the members of our law enforcement agencies, and worst of all, against the peaceful members of our society;

WHEREAS, in the fanatical pursuit of their conspiracy and widespread acts of violence, depredations, sabotage and injuries against our people, and in order to provide the essential instrument to direct and carry out their criminal design and unlawful activities, and to achieve their ultimate sinister objectives, these lawless elements have in fact organized, established and are now maintaining a Central Committee, composed of young and dedicated, radical students and intellectuals, which is charged with guiding and directing the armed struggle and propaganda assaults against our duly constituted government, and this Central Committee is now imposing its will and asserting its sham authority on certain segments of our population, especially in the rural areas, through varied means of subterfuge, deceit, coercion, threats, intimidations, machinations, treachery, violence and other modes of terror, and has been and is illegally exacting financial and other forms of tributes from our people to raise funds and material resources to support its insurrectionary and propaganda activities against our duly constituted government and against our peace-loving people ;

WHEREAS, in order to carry out, as in fact they have carried out, their premeditated plan to stage, undertake and wage a full scale armed insurrection and rebellion in this country, these lawless elements have organized, established and are now maintaining a well trained, well armed and highly indoctrinated and greatly expanded insurrectionary force, popularly known as the “New People’s Army”, which has since vigorously pursued and still is vigorously pursuing a

431

relentless and ruthless armed struggle against our duly constituted government and whose unmitigated forays, raids, ambushes, assaults, and reign of terror and acts of lawlessness in the rural areas and in our urban centers brought about the treacherous and cold-blooded assassination of innocent civilians, military personnel of the government and local public officials in many parts of the country, notably in the Cagayan Valley, in Central Luzon, in the Southern Tagalog Region, in the Bicol Area, in the Visayas and in Mindanao, and whose daring and wanton guerrilla activities have generated and sown fear and panic among our people; have created a climate of chaos and disorder, produced a state of political, social, psychological and economic instability in our land, and have inflicted great suffering and irreparable injury to persons and property in our society”;

WHEREAS, these lawless elements, their cadres, fellow-travellers, friends, sympathizers and supporters have for many years up to the present time been mounting sustained, massive and destructive propaganda assaults against our duly constituted government, its instrumentalities, agencies and officials, and also against our social, political, economic and religious institutions, through the publications, broadcasts and disseminations of deliberate slanted and overly exaggerated news stories and news commentaries as well as false, vile foul and scurrilous statements utterances, writings and pictures through the press-radio-television media and through leaflets, college campus newspapers and some newspapers published and still being published by these lawless elements, notably the “Ang Bayan”, Pulang Bandila” and the “Ang Komunista”, all of which are clearly well-conceived, intended and calculated to malign and discredit our duly constituted government, its instrumentalities, agencies, and officials before our people making it appear to the people that our government has become so weak and so impotent to perform and discharge its functions and responsibilities in our society and to our people, and thus undermine and destroy the faith and loyalty and allegiance of our people in and alienate their support for their duly constituted government, its instrumentalities, agencies and officials, and thereby gradually erode and weaken as in fact they have so eroded and weakened the will of our people to sustain and defend our government and our democratic way of life ;

WHEREAS, these lawless elements having taken up arms against our duly constituted government and against our people, and having committed and are still committing acts of armed insurrection and rebellion consisting of armed raids, forays, sorties, ambushes, wanton acts of murders, spoilage, plunder, looting, arsons, destruction of public and private buildings, and attacks against innocent and defenseless civilian lives and property, all of which activities have seriously endangered and continue to endanger public order and safety and the security of the nation, and acting with cunning and manifest precision and deliberation and without regard to the health, safety and well-being of the people, are now implementing their plan to cause

widespread, massive and systematic destruction and paralization of vital public utilities and services, particularly water systems, sources of electrical power, communication and transportation facilities, to the great detriment, suffering, injury and prejudice of our people and the nation and to generate a deep psychological fear and panic among our people;

432

WHEREAS, the Supreme Court in the cases brought before it, docketed as G.R. Nos. L-33964, L-33965, L-33973, L-33982, L-34004, L-34013, L-34039, L-34265, and L-34339, as a consequence of the suspension of the privilege of the writ of habeas corpus by me as President of the Philippines in my Proclamation No.889, dated August 21, 1971, as amended, has found that in truth and in fact there exists an actual insurrection and rebellion in the country by a sizeable group of men who have publicly risen in arms to overthrow the government. Here is what the Supreme Court said in its decision promulgated on December 11, 1971:

” x x x our jurisprudence attests abundantly to the Communist activities in the Philippines, especially in Manila, from the late twenties to the early thirties, then aimed principally at incitement to sedition or rebellion, as the immediate objective. Upon the establishment of the Commonwealth of the Philippines, the movement seemed to have waned notably; but, the outbreak of World War II in the Pacific and the miseries, the devastation and havoc, and the proliferation of unlicensed firearms concomitant with the military occupation of the Philippines and its subsequent liberation, brought about, in the late forties, a resurgence of the Communist threat, with such vigor as to be able to organize and operate in Central Luzon an army -called HUKBALAHAP, during the occupation, and renamed Hukbong Mapagpalaya ng Bayan (HMB) after liberation- which clashed several times with the armed forces of the Republic. This prompted then President Quirino to issue Proclamation No.210, dated October 22, 1950, suspending the privilege of the writ of habeas Corpus, the validity of which was upheld in *Montenegro v. Castañeda*. Days before the promulgation of said Proclamation, or on October 18, 1950, members of the Communist Politburo in the Philippines were apprehended in Manila. Subsequently accused and convicted of the crime of rebellion, they served their respective sentences.

“The fifties saw a comparative lull in Communist activities, insofar as peace and order were concerned. Still, on June 20, 1957, Republic Act No.1700, otherwise known as the Anti Subversion Act, was approved, upon the grounds stated in the very preamble of said statute -that

” x x x the Communist Party of the Philippines, although purportedly apolitical party, is in fact an organized conspiracy to overthrow the Government of the Republic of the Philippines, not only by force and violence but also by deceit, subversion and other illegal means, for the purpose of establishing in the Philippines a totalitarian regime subject to alien domination and control ;

” x x x the continued existence and activities of the Communist Party of the Philippines constitutes a clear, present and grave danger to the security of the Philippines; and

” x x x in the fact of the organized, systematic and persistent subversion, national in scope but international in direction, posed by the Communist ...Party of the Philippines and its activities, there is urgent need for special legislation to cope with this continuing menace to the freedom and security of the country x x x.” :

“In the language of the Report on Central Luzon, submitted, on September 4, 1971, by the Senate Ad Hoc Committee of Seven-copy of which Report was filed in these cases by the petitioners herein-

433

“The years following 1963 saw the successive emergence in the country of several mass organizations, notably the Lapiang Manggagawa (now the Socialist Party of the Philippines) among the workers; the Malayang Samahan ng Mga Magsasaka (MASAKA) among the peasantry; the Kabataang Makabayan (KM) among the youth/students; and the Movement for the Advancement of Nationalism (MAN) among the intellectuals/professionals, the PKP has exerted all-out effort to infiltrate, influence and utilize these organizations in promoting its radical brand of nationalism.”

“Meanwhile, the Communist leaders in the Philippines had been split into two (2) groups, one of which -com- posed mainly of young radicals, constituting the Maoist faction -reorganized the Communist Party of the Philip- pines early in 1969 and established a New People’s Army. This faction adheres to the Maoist concept of the ‘Protracted People’s War’ or ‘War of National Liberation.’ Its ‘Programme for a People’s Democratic Revolution’ states, inter alia:

“The Communist Party of the Philippines is determined to implement its general programme for a people’s democratic revolution. All Filipino communists are ready to sacrifice their lives for the worthy cause of achieving the new type of democracy, of building a new Philippines that is genuinely and completely independent, democratic, united, just and prosperous . . .

“The Central task of any revolutionary movement is to seize political power. The Communist Party of the Philippines assumes this task at a time that both the international and national situations are favorable to taking the road of armed revolution...’

“In the year 1969, the NPA had-according to the records of the Department of National Defense conducted raids, resorted to kidnappings and taken part in other violent incidents numbering over 230, in which it inflicted 404 casualties, and, in turn, suffered 243 losses. In 1970, its record of violent incidents was about the same, but the NPA casualties more than doubled.

“At any rate, two (2) facts are undeniable: (a) all Communists, whether they belong to the traditional group or to the Maoist faction, believe that force and violence are indispensable to the attainment of their main and ultimate objective, and act in accordance with such belief, although they disagree on the means to be used at a given time and in a particular place; and (b) there is a New People’s Army, other, of course, than the armed forces of the Republic and antagonistic thereto. Such New People’s Army is per se proof of the existence of a rebellion, especially considering that its establishment was announced publicly by the reorganized CPP. Such announcement is in the nature of a public challenge to the duly constituted authorities and may be likened to a declaration of war, sufficient to establish a war status or a condition of belligerency, even before the actual commencement of hostilities.

“We entertain, therefore, no doubts about the existence of a sizeable group of men who have publicly risen in arms to overthrow the government and have thus been and still are engaged in rebellion against the Government of the Philippines.”

WHEREAS, these lawless elements have to a considerable extent succeeded in impeding our duly constituted authorities from performing their functions and discharging their duties and responsibilities in accordance with our laws and our Constitution to the great damage, prejudice and detriment of the people and the nation;

434

WHEREAS, it is evident that there is throughout the land a state of anarchy and lawlessness, chaos and disorder, turmoil and destruction of a magnitude equivalent to an actual war between the forces of our duly constituted government and the New People's Army and their satellite organizations because of the unmitigated forays, raids, ambushes, assaults, violence, murders, assassinations, acts of terror, deceptions, coercions, threats, intimidations, treachery, machinations, arsons, plunders and depredations committed and being committed by the aforesaid lawless elements who have pledged to the whole nation that they will not stop their dastardly effort and scheme until and unless they have fully attained their primary and ultimate purpose of forcibly seizing political and state power in this country by overthrowing our present duly constituted government, by destroying our democratic way of life and our established secular and religious institutions and beliefs, and by supplanting our existing political, social, economic, legal and moral order with an entirely new one whose form of government, whose notion of individual rights and family relations, and whose political, social, economic and moral precepts are based on the Marxist-Leninist-Maoist teachings and beliefs ;

WHEREAS, the Supreme Court in its said decision concluded that the unlawful activities of the aforesaid lawless elements actually pose a clear, present and grave danger to public safety and the security of the nation and in support of that conclusion found that:

” x x x the Executive had information and reports-subsequently confirmed, in many respects, by the above-mentioned Report of the Senate Ad Hoc Committee of Seven -to the effect that the Communist Party of the Philippines does not merely adhere to Lenin's idea of a swift armed uprising; that it has, also, adopted Ho Chi Minh's terrorist tactics and resorted to the assassination of uncooperative local officials ; that, in line with this policy, the insurgents have killed 5 mayors, 20 barrio captains and 3 chiefs of police; that there were fourteen (14) meaningful bombing incidents in the Greater Manila area in 1970; that the Constitutional Convention Hall was bombed on June 12, 1971; that, soon after the Plaza Miranda incident, the N A W ASA main pipe at the Quezon City San Juan boundary, was bombed; that this was followed closely by the bombing of the Manila City Hall, the COMELEC Building, the Congress Building and the MERALCO substation at Cubao, Quezon City; and that the respective residences of Senator Jose J. Roy and Congressman Eduardo Cojuangco were, likewise, bombed, as were the MERALCO main office premises, along Ortigas Avenue, and the Doctor's Pharmaceuticals, Inc. Building, in Caloocan City.

” x x x the reorganized Communist Party of the Philippines has, moreover, adopted Mao's concept of protracted people's war, aimed at the paralyzation of the will to resist of the government, of the political, economic and intellectual leadership, and of the people themselves; that conformably to such concept, the Party has placed special emphasis upon a most extensive and intensive program of subversion by the I establishment of front organizations in urban centers, the organization of armed city partisans and the infiltration in student groups, labor

unions, and farmer and professional groups; that the CPP has managed to infiltrate or establish and control nine (9) major labor organizations; that it has exploited the youth movement and succeeded in making Communist fronts of eleven (11) major student or youth organizations; that there are, accordingly, about thirty (30) mass organizations actively advancing the CPP interests, among which are the Malayang Samahan ng Magsasaka (MASAKA) , the Kabataang

435

Makabayan (KM) , the Movement for the Advancement of Nationalism (MAN) , the Samahang Demokra- tiko ng Kabataan (SDK) , the Samahang Molave (SM) , and the Malayang Pagkakaisa ng Kabataang Pilipino (MPKP) ; that, as of August, 1971, the KM had two hundred forty-five (245) operational chapters throughout the Philippines, of which seventy-three (73) were in the Greater Manila Area, sixty (60) in Northern Luzon, forty nine (49) in Central Luzon, forty-two (42) in the Visayas and twenty-one (21) in Mindanao and Sulu; that in 1970, the Party had recorded two hundred fifty-eight (258) major demonstrations, of which about thirty-three (33) ended in violence, resulting in fifteen (15) killed and over five hundred (500) injured; that most of these actions were organized, coordinated or led by the aforementioned front organizations; that the violent demonstration were generally instigated by a small, but well-trained group of armed agitators; that the number of demonstrators heretofore staged in 1971 has already exceeded those of 1970: and that twenty-four (24) of these demonstrations were violent and resulted in the death of fifteen (15) persons and the injury of many more.

“Subsequent events xxx have also proven xxx the threat to public safety posed by the New People’s Army. Indeed, it appears that, since August 21, 1971, it had in Northern Luzon six (6) encounters and staged one (1) raid, in consequences OJ which seven (7) soldiers lost their lives and two (2) other: were wounded, whereas the insurgents suffered five (5) casualties; that on August 26, 1971, a well-armed group of NPA trained by defector Lt. Victor Corpus, attacked the very command post of TF LAWIN in Isabela, destroying two (2) helicopters and one (1) plane, and wounding one (1) soldier that the, NPA had in Central Luzon a total of four (4) encounters, with two (2) killed and three (3) wounded on the side of the Government, one (1) BSDU killed and three (3) KM-SDK leaders, an unidentified dissident, and Commander Panchito, leader of the dissident group were killed; that on August 26, 1971, there was an encounter in the barrio of San Pedro, Iriga City, Camarines Sur, between the PC and the NPA, in which a PC and two (2) KM members were killed, that the current disturbances in Cotabato and the Lanao provinces have been rendered more complex by the involvement of the CPP /NPA, for, in mid-1971, a KM group, headed by Jovencio Esparagoza, contacted the Higa-onan tribes, in their settlement in Magsaysay, Misamis Oriental, and offered them books, pamphlets and brochures of Mao Tse Tung, as well as conducted teach-ins in the reservation; that Esparagoza was reportedly killed on September 22, 1971, in an operation of the PC in said reservation; and that there are now two (2) NPA cadres in Mindanao.

“It should, also, be noted that adherents of the CPP and its front organizations are, according to intelligence findings, definitely capable of preparing powerful explosives out of locally available materials; that the bomb used in the Constitutional Convention Hall was a ‘Claymore’ mine, a powerful explosive device used by the U.S. Army, believed to have been one of many

pilfered from the Subic Naval Base a few days before; that the President had received intelligence information to the effect that there was a July-August Plan involving a wave of assassinations, kidnappings, terrorism and mass destruction of property and that an extraordinary occurrence would signal the beginning of said event; that the rather serious condition of peace and order in Mindanao, particularly in Cotabato and Lanao, demanded the presence therein of forces sufficient to cope with the situation; that a sizeable part of our armed forces discharges

436

other functions; and that the expansion of the CPP activities from Central Luzon to other parts of the country, particularly Manila and its suburbs, the Cagayan Valley, Ifugao, Zambales, Laguna, Quezon and the Bicol Region, required that the rest of our armed forces be spread thin over a wide area.”

WHEREAS, in the unwavering prosecution of their revolutionary war against the Filipino people and their duly constituted government, the aforesaid lawless elements have, in the months of May, June and July, 1972, succeeded in bringing and introducing into the country at Digoyo Point, Palanan, Isabela and at other undetermined points along the Pacific coastline of Luzon, a substantial quantity of war material consisting of M-1.4 rifles estimated to be some 3,500 pieces, several dozens of 40 mm rocket launchers which are said to be Chicom copies of a Russian prototype rocket launcher, large quantities of 80 mm rockets and ammunitions, and other combat paraphernalia, of which war material some had been discovered and captured by government military forces, and the bringing and introduction of such quantity and type of war material into the country is a mute but eloquent proof of the sinister plan of the aforesaid lawless elements to hasten the escalation of their present revolutionary war against the Filipino people and their legitimate government ;

WHEREAS, in the execution of their overall revolutionary plan, the aforesaid lawless elements have prepared and released to their various field commanders and Party workers a document captioned “REGIONAL PROGRAM OF ACTION 1972”, a copy of which was captured by elements of the 116th and 119th Philippine Constabulary Companies on June 18, 1972 at Barrio Taringsing, Cordon, Isabela

WHEREAS, in line with their “REGIONAL PROGRAM OF ACTION 1972”, the aforesaid lawless elements have of late been conducting intensified acts of violence and terrorisms during the current year in the Greater Manila area such as the bombing of the Arca building at Taft Avenue, Pasay City, on March 15; of the Filipinas Orient Airways board room at Domestic Road, Pasay City on April 23; of the Vietnamese Embassy on May 30; of the Court of Industrial Relations on June 23; of the Philippine Trust Company branch office in Cubao, Quezon City on June 24; of the Philamlife building at United Nations Avenue, Manila, on July 3; of the Tabacalera Cigar & Cigarette Factory Compound at Marquez de Comilas, Manila on July 27; of the PLDT exchange office at East Avenue, Quezon City, and of the Philippine Sugar Institute building at North Avenue, Diliman, Quezon City, both on August 15; of the Department of Social Welfare building at San Rafael Street, Sampaloc, Manila, on August 17; of a water main on Aurora Boulevard and Madison Avenue, Quezon City on August 19; of the Philamlife building again on August 30; this time causing severe destruction on the Far East Bank and Trust Company building nearby; of the armored car and building of the Philippine Banking

Corporation as well as the buildings of the Investment Development Inc, and the Daily Star Publications when an-other explosion took place on Railroad Street, Port Area, Manila also on August 30; of Joe's Department Store on Carriedo Street, Quiapo, Manila, on September 5, causing death to one woman and injuries to some 38 individuals; and of the City Hall of Manila on September 8; of the watermains in San Juan, Rizal on Sept, 12, of the San Miguel building on Makati, Rizal on Sept, 14; and of the Quezon City Hall on September 18, 1972, as well as the attempted bombing of the Congress Building on July 18, when an unexploded bomb was found in

437

the Senate Publication Division and the attempted bombing of the Department of Foreign Affairs on August 30,

WHEREAS, in line with the same "REGIONAL PROGRAM OF ACTION 1972", the aforesaid lawless elements have also fielded in the Greater Manila area several of their "Sparrow Units" or "Simbad Units" to undertake liquidation missions against ranking government officials, military personnel and prominent citizens and to further heighten the destructions and depredations already inflicted by them upon our innocent people, all of which are being deliberately done to sow terror, fear and chaos amongst our population and to make the government look so helpless and incapable of protecting the lives and property of our people;

WHEREAS, in addition to the above-described social disorder, there is also the equally serious disorder in Mindanao and Sulu resulting from the unsettled conflict between certain elements of the Christian and Muslim population of Mindanao and Sulu, between the Christian "Ilagas" and the Muslim "Barracudas", and between our government troops, and certain lawless organizations such as the Mindanao Independence Movement;

WHEREAS, the Mindanao Independence Movement with the active material and financial assistance of foreign political and economic interests, is engaged in an open and unconcealed attempt to establish by violence and force a separate and independent political state out of the islands of Mindanao and Sulu which are historically, politically and by law parts of the territories and within the jurisdiction and sovereignty of the Republic of the Philippines;

WHEREAS, because of the aforesaid disorder resulting from armed clashes, killings, massacres, arsons, rapes, pillages, destruction of whole villages and towns and the inevitable cessation of agricultural and industrial operations, all of which have been brought about by the violence inflicted by the Christians, the Muslims, the "Ilagas", the "Barracudas", and the Mindanao Independence Movement against each other and against our government troops, a great many parts of the islands of Mindanao and Sulu are virtually now in a state of actual war;

WHEREAS, the violent disorder in Mindanao and Sulu has todate resulted in the killing of over 1,000 civilians and about 2,000 armed Muslims and Christians, not to mention the more than five hundred thousand of injured, displaced and homeless persons as well as the great number of casualties among our government troops, and the paralyzation of the economy of Mindanao and Sulu;

WHEREAS, because of the foregoing acts of armed insurrection, wanton destruction of human

lives and property, unabated and unrestrained propaganda attacks against the government and its institutions, instrumentalities, agencies and officials, and the rapidly expanding ranks of the aforesaid lawless elements, and because of the spreading lawlessness and anarchy throughout the land, all of which have prevented the government to exercise its authority, extend to its citizenry the protection of its laws and in general exercise its sovereignty over all of its territories, caused serious demoralization among our people and have made the public apprehensive and fearful, and finally because public order and safety and the security of this nation demand that immediate, swift, decisive and effective action be taken to protect and insure

438

the peace, order and security of the country and its population and to maintain the authority of the government ;

WHEREAS, in cases of invasion, insurrection or rebellion or imminent danger thereof, I, as President of the Philippines, have, under the Constitution, three courses of action open to me, namely: (a) call out the armed forces to suppress the present lawless violence; (b) suspend the privilege of the writ of habeas corpus to make the arrest and apprehension of these lawless elements easier and more effective; or (c) place the Philippines or any part thereof under martial law;

WHEREAS, I have already utilized the first two courses of action, first, by calling upon the armed forces to suppress the aforesaid lawless violence, committing to that specific job almost 50% of the entire armed forces of the country and creating several task forces for that purpose such as Task Force Saranay, Task Force Palanan, Task Force Isarog, Task Force Pagkakaisa and Task Force Lancaf, and, second, by suspending the privilege of the writ of habeas corpus on August 21, 1971 up to January 11, 1972, but inspite of all that, both courses of action were found inadequate and ineffective to contain, much less solve, the present rebellion and lawlessness in the country as shown by the fact that :

1. That radical left has increased the number and area of operation of its front organizations and has intensified the recruitment and training of new adherents in the urban and rural areas especially from among the youth;
2. The Kabataang Makabayan (KM) , the most militant and outspoken front organization of the radical left, has increased the number of its chapters from 200 as of the end of 1970 to 317 as of July 31, 1972 and its membership from 10,000 as of the end of 1970 to 15,000 as of the end of July , 1972, showing very clearly the rapid growth of the Communist movement in this country;
3. The Samahang Demokratiko Ng Kabataan (SDK), another militant and outspoken front organization of the radical left, has also increased the number of its chapters from an insignificant number at the end of 1970 to 159 as of the end of July, 1972 and has now a membership of some 1,495 highly indoctrinated, intensely committed and almost fanatically devoted individuals;
4. The New People's Army, the most active and the most violent and ruthless military arm of the radical left, has increased its total strength from an estimated 6,500 (composed of 560 regulars,

1,500 combat support and 4,400 service support) as of January 1, 1972 to about 7,900 (composed of 1,028 regulars, 1,800 combat support and 5,025 service support) as of July 31, 1972, showing a marked increase in its regular troops of over 100% in such a short period of six months;

5. The establishment of sanctuaries for the insurgents in Isabela, in Zambales, in Camarines Sur, and in some parts of Mindanao, a development heretofore unknown in our campaign against subversion and insurgency in this country;

439

6. The disappearance and dropping out of school of some 3,000 high school and college students and who are reported to have joined with the insurgents for training in the handling of firearms and explosives ;

7. The bringing and introduction into the country of substantial war material consisting of military hardware and supplies through the MV Karagatan at Digoyo Point, Palanan, Isabela, and the fact that many of these military hardware and supplies are now in the hands of the insurgents and are being used against our government troops;

8. The infiltration and control of the media by persons who are sympathetic to the insurgents and the consequent intensification of their propaganda assault against the government and the military establishment of the government;

9. The formation of the grass-root level of “political power organs”, heretofore unknown in the history of the Communist movement in this country, composed of Barrio Organizing Committees (BOCs) to mobilize the barrio people for active involvement in the revolution; the Barrio Revolutionary Committees (BRCs) to act as “local government” in barrios considered as CPP / NP A bailiwicks; the Workers Organizing Committees (WOCs) to organize workers from all sectors; the School Organizing Committees (SOCs) to conduct agitation and propaganda activities and help in the expansion of front groups among the studentry; and the Community Organizing Committees (COCs) which operate in the urban areas in the same manner as the BOCs.

WHEREAS, the rebellion and armed action undertaken by these lawless elements of the communist and other armed aggrupations organized to overthrow the Republic of the Philippines by armed violence and force have assumed the magnitude of an actual state of war against our people and the Republic of the Philippines;

NOW, THEREFORE, I, FERDINAND E. MARCOS, President of the Philippines, by virtue of the powers vested upon me by Article VII, Section 10, Paragraph (2) of the Constitution, do hereby place the entire Philippines as defined in Article I, Section 1 of the Constitution under martial law and, in my capacity as their commander-in-chief, do hereby command the armed forces of the Philippines, to maintain law and order throughout the Philippines, prevent or suppress all forms of lawless violence as well as any act of insurrection or rebellion and to enforce obedience to all the laws and decrees, orders and regulations promulgated by me personally or upon my direction.

In addition, I do hereby order that all persons presently detained, as well as all others who may

hereafter be similarly detained for the crimes of insurrection or rebellion, and all other crimes and offenses committed in furtherance or on the occasion thereof, or incident thereto, or in connection therewith, for crimes against national security and the law of nations, crimes against public order, crimes involving usurpation of authority, rank, title and improper use of names, uniforms and insignia, crimes committed by public officers, and for such other crimes as will be enumerated in Orders that I shall subsequently promulgate, as well as crimes as a consequence of any violation of any decree, order or regulation promulgated by me personally or promulgated

440

upon my direction shall be kept under detention until otherwise ordered re- leased by me or by my duly designated representative.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the seal of the Republic of the Philippines to be affixed.

Done in the City of Manila, this 21st day of September, in the year of Our Lord, nineteen hundred and seventy two.

(SGD.) FERDINAND E.
MARCOS

PRESIDENT

Republic of the Philippines

By the President:

(SGD.) ROBERTO V. REYES

Acting Executive Secretary

This entry was posted under Executive Issuances, Proclamations and tagged Executive Issuances, Ferdinand E. Marcos, Martial Law, Proclamations. Bookmark the [permalink](#).